

Mohan Lal Kesarwani v. State of U.P.

Allahabad High Court · Division Bench · 20 September 2017 · Writ-C No. 43637 of 2017 · **Writ disposed; 50% deposit and cl. 6.5 billing dispute directed.**

HEADNOTE

A writ seeking mandamus to settle an electricity billing dispute, wrongly listed as a Recovery Matter in the absence of recovery proceedings, was disposed of on the consumer's offer to deposit 50% of bills dated 31.8.2017 and to raise a dispute under cl. 6.5 of the Electricity Supply Code, 2005. The licensee is to consider that dispute on merits in accordance with law; if no dispute is raised, the balance may be recovered.

FACTUAL SUMMARY

Mohan Lal Kesarwani sought a mandamus to settle an electricity consumption billing dispute. The writ was first listed as a Recovery Matter; that Division Bench found no recovery proceedings on record and directed listing before the appropriate Bench as fresh. Before the Chief Justice two days later, counsel offered to deposit 50% of the demand under bills dated 31 August 2017 and to raise a Supply Code billing dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed electricity bills

HOLDING

On the petitioner's offer to deposit 50% of the demand under electricity bills dated 31.8.2017, the Court directed that if that deposit is made and a dispute of those bills is raised under cl. 6.5 of the Electricity Supply Code, 2005 within two weeks thereafter, the licensee shall consider and deal with it on merits in accordance with law expeditiously; if no such dispute is raised, the respondents may recover the balance in accordance with law. The writ was disposed of on that footing without deciding the bills. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY BILLS DATED 31.8.2017

Relegated to a cl. 6.5 Supply Code dispute after 50% deposit; not decided in the writ. ¶ 2